

22BBCV00730 22BBCV00730

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 22BBCV00730 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION TO QUASH SUBPOENAS

Los

Angeles Superior Court Case # 22BBCV00730

MP: Plaintiff Anait Basmadzhyan

RP: Defendant City of Los Angeles

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Operative Complaint

Anait

Basmadzhyan ("Plaintiff") alleges that on January 29, 2022, Plaintiff was injured due to an uneven sidewalk that contained cracked and unmaintained materials so as to constitute a dangerous condition on public property.

The Complaint,

filed October 10, 2022, alleges a single cause of action against Defendants City of Los Angeles ("City") and County of Los Angeles ("County") for Statutory Liability for Dangerous Condition of Public Property against Public Entities and Employees (Govt. Code, §§ 815.2(a), 820(a), 835, 840.2, and 840.4).

On

January 3, 2023, Plaintiff dismissed without prejudice County.

B.

Operative Cross-Complaint

On March

7, 2023, City filed a cross-complaint against Roes 1-10 for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

MOTION

ON CALENDAR:

On July

17, 2026, Plaintiff Anait Basmadzhyan filed a Motion to Quash Subpoenas for Medical, Radiology, and Billing. On

August 6, 2026, City filed an opposition.

On August 14, 2026, Plaintiff filed a reply.

LEGAL

STANDARD:

C.C.P. § 1987.1 grants the trial court authority to

quash a subpoena when necessary. C.C.P. § 1987.1(a) states, "If a

subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

C.C.P. §

2017.020(a) states: "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040."

ANALYSIS:

Plaintiff seeks an order quashing or modifying the City's subpoenas to limit production from five years before the January 29, 2022 incident (January 29, 2017) to the present, or alternatively: (a) production of records in the first instance to Plaintiff's counsel who shall produce all responsive records to City and serve a log of withheld documents within 15 days; or (b) an in camera review; and (c) a protective order limiting the use of the produced records to this action. City's eight medical, billing, and radiology records subpoenas issued on June 23, 2026, include:

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(1) Kaiser Permanente –

Central ROI Unit (Medical Records) [Ref # 145276-01], seeking: "Any and all non-privileged physical and digital medical records including but not limited to both private and industrial records, doctors notes, treatment and evaluation records, nurses notes, inpatient and outpatient records, correspondence, lab results, diagnostic test results and all medical and radiology reports."

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(2) Kaiser Permanente – Central ROI Unit (Billing Records) [Ref # 145276-02], seeking: “Any and all non-privileged physical and digital itemized billing records.”

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(3) Kaiser Permanente (Radiology Dept/Release of Information) (Radiology Records) [Ref # 145276-03], seeking: “Any and all non-privileged physical and digital X-rays, MRI’s and CT scans and reports.”

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(4) Dr. Marina Gold at 800 Central Avenue, Suite 305 in Glendale (Medical, Billing, and Radiology Records) [Ref # 145276-04], seeking: “Any and all non-privileged physical and digital MEDICAL and ITEMIZED BILLING records including but not limited to both private and industrial records, doctors notes, nurses notes, inpatient and outpatient records, correspondence, lab results, diagnostic test results and all medical and radiology reports. To include and and[sic] all actual X-RAY FILMS, CT & MRI SCANS on CD ONLY.”

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(5) Dr. Marina Gold at 631 E. Colorado Street in Glendale (Medical, Billing, and Radiology Records) [Ref # 145276-05], seeking: “Any and all non-privileged physical and digital MEDICAL and ITEMIZED BILLING records including but not limited to both private and industrial records, doctors notes, nurses notes, inpatient and outpatient records, correspondence, lab results, diagnostic test results and all medical and radiology reports. To include and and[sic] all actual X-RAY FILMS, CT & MRI SCANS on CD ONLY.”

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(6) Adventist Health Glendale (Medical Records) [Ref # 145276-06], seeking: “Any and all non-privileged physical and digital medical records including but not limited to both private and industrial records, doctors notes, treatment and evaluation records, nurses notes, inpatient and outpatient records, correspondence, lab results, diagnostic test results and all medical and radiology reports. [¶] To include any and all records from Dr. Anna Lafia.”

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(7) Adventist Health Glendale (Billing Records) including records of Dr. Anna Lafia [Ref # 145276-07], seeking: "Any and all non-privileged physical and digital itemized billing records. [¶] To include any and all records from Dr. Anna Lafia."

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(8) Adventist Health Glendale (Radiology) including records of Dr. Anna Lafia [Ref # 145276-08], seeking: "Any and all non-privileged physical and digital X-rays, MRI's and CT scans and reports. [¶] To include any and all records from Dr. Anna Lafia."

(Petrosyan Decl., Ex. C [Subpoenas].) On July 17, 2026, Plaintiff objected to the subpoenas. (Id., Ex. D [Objection].) The parties attempted to meet and confer regarding temporal limitations to body parts listed in Plaintiff's discovery responses, prior to Plaintiff filing this motion. (Id., ¶15, Ex. E.)

First, the subpoenas do not include any temporal restrictions such that they potentially seek a lifetime of records. The parties attempted to meet and confer on this issue and were unable to reach a resolution. While Plaintiff offers five years prior to the January 29, 2022 subject incident (or January 29, 2017) to the present, City argues that Plaintiff testified in her deposition that she was diagnosed with neuropathy approximately five or six years prior to the incident (Opp. at p.4). City argues that Plaintiff's temporal restriction of five years in the motion "are appropriate," but that Plaintiff's attempt to further limit the scope of the subpoenas is not supported because Plaintiff claims mental, emotional, physical/orthopedic injuries. (Opp. at 8:11-17.) (Differently, on page 11 of the opposition, City appears to seek ten years of pre-incident records irrespective of body parts.)

The Court finds that a six-year temporal limitation is appropriate for this case.

Thus, the subpoenas shall be modified to limit production from records dating January 29, 2016 (six years prior to the January 29, 2022 incident) to the present.

Second,

while a plaintiff is not obligated to sacrifice all privacy to seek redress for a specific physical, mental, or emotional injury, “they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit.”

(Britt v. Superior Court (1978)

20 Cal.3d 844, 864; City & County of

San Francisco v. Superior Court (1951) 37 Cal.2d 227, 232.) A plaintiff suing for personal injuries

waives the physician-patient privilege to some extent, but this does not make

discoverable all of a plaintiff’s lifetime medical history. (Britt,

supra, 20 Cal.3d at 863-64.)

Plaintiff claims the following

injuries attributed to the subject incident: the right little and ring fingers

(fifth and fourth) fingers; the right hand, wrist, and shoulder; knees;

hamstring; thighs; and emotional injury, sleep disruption, anxiety, and depression. (Petrosyan Decl., Ex. A [Pl.’s FROG 6.3 Response].) Although City argues that

given Plaintiff’s own uncertainty during her deposition regarding her various

orthopedic and psychological/emotional injuries, Plaintiff’s withholding of

documents about pre-incident medical providers, and its dispute regarding

causation and extent of Plaintiff’s injuries, City argues it is entitled to

seek medical records/history relevant to the similar body parts alleged in her

own discovery responses. (Opp. at

7:12-16.)

The Court declines to allow

discovery to all medical records irrespective of body parts. As stated in Britt, the Court will

limit the subpoenas to the specific body parts that Plaintiff claimed was injured as a result of the subject incident.

Finally,

Plaintiff requests that if the Court is inclined to permit production beyond

the five-year window, then she seeks alternative relief regarding the “first

look,” producing records and a redaction log to City, and that all records be

used solely for the purposes of this litigation and destroyed/returned at its

conclusion. (Mot. at p.9.)

As acknowledged by both Gary

Petrosyan (Plaintiff’s counsel) and Jaime Hernandez (defense counsel), Kaiser

does not generally parse out medical records based on agreed upon body parts as

requested in a subpoena. (See Petrosyan Decl., Ex. E [July 13 and 15, 2026 Emails].)

In order to protect the physician-patient privilege for body parts that are not at issue in this action, the Court will allow Plaintiff's counsel to have a "first look" of the subpoenaed documents and provide a privilege log for any redacted documents.

The motion is granted such that the subpoenas shall be modified and limited to no more than six years prior to the subject incident (January 29, 2016) to the present, to the body parts Plaintiff claims were injured as a result of the incident (the right fifth/little and fourth/ring fingers; the right hand, wrist, and shoulder; knees; hamstring; thighs; and emotional injury, sleep disruption, anxiety, and depression). Based on the parties' general understanding of Kaiser's (and perhaps other medical professional's) practice of not redacting/limiting production of documents, the Court finds Plaintiff's request for a "first look" of the produced documents to be reasonable in light of Plaintiff's offer to provide a privilege log for redacted/removed documents.

A. Sanctions

"[I]n making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (C.C.P. § 1987.2(a).)

Plaintiff

seeks \$3,660 in sanctions (= [4 hours on the motion + 5 anticipated hours to review and reply to the opposition and attend the hearing, at \$400/hour] + \$60 filing fees). (Petrosyan Decl., ¶9.)

City

argues that sanctions should not be ordered because sanctions were not noticed in the motion, there is no declaration supporting sanctions, City offered to modify the subpoenas (to ten years), and Plaintiff filed this motion in bad faith.

Based on

the Court's review of the notice of motion, it states on page 3, lines 9-12 that Plaintiff is requesting monetary sanctions against City and its counsel of record, jointly and severally, in the amount of \$3,660 pursuant to C.C.P. § 1987.2. As such, the notice is sufficient. Next, counsel Gary Petrosyan's declaration at paragraph 9 details the time spent, his hourly rate, his anticipated hours, and the filing fee. (See Petrosyan Decl., ¶9.)

The Court

does not find that this motion was filed in bad faith. Based on a review of the parties' meet and confer efforts, the parties discussed and offered various proposals on limiting the deposition subpoenas, such that there were good faith meet and confer efforts; however, the parties reached an impasse, resulting in this motion. Ultimately, Plaintiff was meritorious in bringing this motion, but sanctions are not warranted.

Sanctions

are denied.

RULING:

In the

event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Anait

Basmadzhyan's Motion to Quash Subpoenas for Medical, Radiology, and Billing came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The Motion TO QUASH OR MODIFY DEFENDANT'S DEPOSITION

SUBPOENAS IS GRANTED such that THE SUBPOENAS SHALL BE MODIFIED AND LIMITED TO NO MORE THAN SIX YEARS PRIOR TO THE SUBJECT INCIDENT (OR JANUARY 29, 2016) TO THE PRESENT TO THE BODY PARTS PLAINTIFF CLAIMS WERE INJURED AS A RESULT OF THE INCIDENT (THE RIGHT FIFTH/LITTLE AND FOURTH/RING FINGERS; THE RIGHT HAND, WRIST, AND SHOULDER; KNEES; HAMSTRING; THIGHS; AND EMOTIONAL INJURY, SLEEP DISRUPTION, ANXIETY, AND DEPRESSION). CITY SHALL MODIFY AND REISSUE THE DEPOSITION SUBPOENAS CONSISTENT WITH THESE LIMITATIONS.

PLAINTIFF'S COUNSEL SHALL HAVE A "FIRST LOOK" OF THE DOCUMENTS AND MUST NOTIFY DEFENDANT WHEN THE DOCUMENTS HAVE BEEN PRODUCED. FROM THE DATE OF PRODUCTION, PLAINTIFF SHALL HAVE 14 DAYS TO REVIEW, REDACT, AND CREATE A PRIVILEGE LOG AND SHALL SERVE THE REDACTED DOCUMENTS AND ACCOMPANYING PRIVILEGE LOG BY THE END OF THE 14 DAY DEADLINE.

SANCTIONS ARE DENIED.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.